

Tentative Rulings for July 29, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2406478	TEARE vs FORD MOTOR COMPANY	MOTION TO BE RELIEVED AS COUNSEL FOR SHERRY TEARE

Tentative Ruling:

GRANT

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506226	VALENCIA vs HUMPHRIES	PLAINTIFF'S MOTION TO VACATE DISMISSAL FOR FAILURE TO TIMELY SERVE DISMISSAL

Tentative Ruling:

GRANT

Dismissal of 7/07/2026, is set aside.

Matter is set for an OSC Re: Dismissal for Failure to file proof of service of the summons and complaint on the Defendant, to be heard on September 29, 2026, at 8:30am, D-4.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506639	WASHINGTON vs THREE PEAKS CORP	DEMURRER ON COMPLAINT

Tentative Ruling:

The 6th and 7th Causes of Action for failure to provide reasonable accommodations and failure to engage in a good faith interactive process are Ordered dismissed without prejudice from the Complaint.

The demurrer is otherwise OVERRULED.

Defendant Three Peaks Corp. to file an Answer within 10 days.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601938	HAMILTON vs KUWANO	DEMURRER ON COMPLAINT

Tentative Ruling:

OVERRULE the demurrer. Defendants Shelby Worthington Loomis and Steve Loomis to Answer within 10 days.

Plaintiff has properly pleaded all the elements of a cause of action for breach of guaranty. Whether Loomis' obligations as a guarantor have been extinguished by Civ. Code § 2819, whether the subsequent guaranty is a substituted contract, and/or whether a novation has occurred, are all merits-based arguments that cannot be resolved at the pleadings stage. Whether the cause of action for breach of guaranty against Steven Loomis can be proven against him at trial is not at issue in this pleadings motion.

Overrule.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602721	COTA vs HORSPOOL	MOTION TO EXPUNGE LIS PENDENS

Tentative Ruling:

DENY

Plaintiff has properly alleged a real property claim for Quiet Title To Prescriptive Easement and Equitable Easement in his First Amended Verified Complaint (FAC), filed on July 10, 2026. Plaintiff has shown the probable validity of these causes of action, hence, the motion to expunge is denied.